

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1655

By: Stanley of the Senate

and

Miller of the House

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9 An Act relating to the Oklahoma Adoption Code;
10 amending 10 O.S. 2021, Section 7505-1.1, which
11 relates to confidential character of hearings and
12 records; modifying applicability of certain
13 provisions; defining terms; updating statutory
14 language; and declaring an emergency.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 10 O.S. 2021, Section 7505-1.1, is
17 amended to read as follows:

18 Section 7505-1.1. A. Unless otherwise ordered by the district
19 court exercising jurisdiction over the adoption proceeding, all
20 hearings held in proceedings pursuant to the Oklahoma Adoption Code
21 shall be confidential and shall be held in closed court without
22 admittance of any person other than interested parties and their
23 counsel.

1 B. All papers, records, and books of proceedings in adoption
2 cases and any papers, records, and books relating to such
3 proceedings:

4 1. Shall be kept as a permanent record of the court and
5 maintained in a separate file by the court clerk; and

6 2. Shall be confidential and shall not be open to inspection or
7 copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6,
8 7508-1.2 and 7508-1.3 of this title or upon order of a court of
9 record for good cause shown.

10 C. Upon application and notice to the person or agency in whose
11 possession the records being sought are held, and for good cause
12 being shown, any court of record may, by written order reciting its
13 findings, permit the necessary information to be released, or may
14 restrict the purposes for which it shall be used. The findings
15 shall include the reasons the information being sought cannot be
16 obtained through the methods authorized by Sections 7504-1.2, 7505-
17 3.2, 7505-6.6, 7508-1.2 and 7508-1.3 of this title.

18 D. The provisions of this section shall not prohibit ~~persons~~:

19 1. Persons employed by the court, the Department of Human
20 Services, a child-placing agency, an attorney participating or
21 assisting in a direct placement adoption, or any physician,
22 minister, or other person or entity assisting or participating in an
23 adoption from providing partial or complete identifying information
24 between a biological parent and prospective adoptive or adoptive

1 parent if a biological parent and a prospective adoptive or adoptive
2 parent mutually agree to share specific identifying information and
3 each gives written, signed notice of their agreement to the court,
4 the Department of Human Services, the child-placing agency, or any
5 attorney participating or assisting in the direct placement adoption
6 pursuant to the Oklahoma Adoption Code; or

7 2. Persons employed by the Department of Human Services from
8 sharing the contact information of an adoptive parent of an adopted
9 child enrolled in the Children's Specialty Plan, and other relevant
10 information necessary for the continuity of care of the child, with
11 the contracted entity that administers the Children's Specialty
12 Plan. As used in this paragraph, the terms "Children's Specialty
13 Plan" and "contracted entity" have the same meanings as provided in
14 Section 4002.2 of Title 56 of the Oklahoma Statutes.

15 E. Any person in charge of adoption records or having access to
16 adoption records or information who discloses any information,
17 including, but not limited to, all records and reports relevant to
18 the case and any records and reports of examination of the minor's
19 parent or other custodian pertaining to an adoption proceeding,
20 contrary to the provisions of this section, upon conviction thereof,
21 shall be guilty of a misdemeanor.

22 SECTION 2. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
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4 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
5 OVERSIGHT, dated 04/14/2026 - DO PASS.
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